

exercise of any powers previously given for the like purpose, issue out of the Consolidated Fund, or the growing produce thereof, such sums not exceeding in the whole the sum of ten million pounds, as may be required by the Postmaster-General for the purpose of developing the telephonic system aforesaid according to estimates approved by the Treasury.

(2) The Treasury may, if they think fit, for the purpose of providing money for sums so authorised to be issued out of the Consolidated Fund, or for repaying to that fund all or any part of the sums so issued, borrow by means of terminable annuities for a term not exceeding twenty years, and all sums so borrowed shall be paid into the Exchequer.

(3) The said annuities shall be paid out of moneys provided by Parliament for the service of the Post Office, and, if those moneys are insufficient, shall be charged on and paid out of the Consolidated Fund of the United Kingdom, or the growing produce thereof.

(4) The Treasury may also, if they think fit, for the same purpose borrow money by means of the issue of Exchequer bonds, and the Capital Expenditure (Money) Act, 1904, shall have effect as if this Act had been in force at the time of the passing of that Act. 4 Edw. 7. c. 21.

(5) Section five of the Telephone Transfer Act, 1911 (which relates to audit), shall have effect as if this Act were included amongst the Acts therein mentioned. 1 & 2 Geo. 5. c. 26.

2. This Act may be cited as the Telegraph (Money) Act, 1913, and may be cited with the Telegraph Acts, 1863 to 1911. Short title.

CHAPTER 25.

An Act to amend the provisions of the Companies (Consolidation) Act, 1908, with respect to private Companies.

[15th August 1913.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:

1.—(1) Where the articles of a company include the provisions which, by section one hundred and twenty-one of the Companies (Consolidation) Act, 1908, as amended by this Act, are required to be included therein in order to constitute the company a private company for the purposes of that Act, and default is made in complying with any of those provisions, the company shall cease to be entitled to the privileges and exemptions conferred on private companies under the provisions of that Act mentioned in the Schedule to this Act, and thereupon

Amendment of the law relating to private companies.

8 Edw. 7. c. 69.

the said provisions shall apply to the company as if it were not a private company:

Provided that the court, on being satisfied that the failure to comply with the conditions was accidental or due to inadvertence or to some other sufficient cause, or that on other grounds it is just and equitable to grant relief, may, on the application of the company or any other person interested and on such terms and conditions as seem to the court just and expedient, order that the company be relieved from such consequences as aforesaid.

(2) In subsection (1) of the said section one hundred and twenty-one of the Companies (Consolidation) Act, 1908, for paragraph (b) the following paragraph shall be substituted:—

“(b) limits the number of its members (exclusive of persons who are in the employment of the company and of persons who having been formerly in the employment of the company, were while in such employment and have continued after the determination of such employment to be members of the company) to fifty; and”

(3) Every private company shall send with the annual list of members and summary required to be sent under section twenty-six of the Companies (Consolidation) Act, 1908, a certificate signed by a director or the secretary that the company has not, since the date of the last return, or in the case of a first return since the date of the incorporation of the company, issued any invitation to the public to subscribe for any shares or debentures of the company; and, where the list of members discloses the fact that the number of members of the company exceeds fifty, also a certificate so signed that such excess consists wholly of persons who under section one hundred and twenty-one of that Act, as amended by this section, are to be excluded in reckoning the number of fifty.

Short title and construction.

2. This Act may be cited as the Companies Act, 1913, and shall be construed as one with the Companies (Consolidation) Act, 1908, and that Act and this Act may be cited together as the Companies Acts, 1908 and 1913.

Section 1.

SCHEDULE.

PROVISIONS OF THE COMPANIES (CONSOLIDATION) ACT, 1908.

Subsection (3) of section twenty-six (which relates to the making of an annual return in the form of a balance sheet).

Section one hundred and fourteen (which relates to the right of preference shareholders and debenture holders to receive and inspect balance sheets and reports).

Section one hundred and fifteen (which relates to the minimum number of members with which a company may continue to carry on business).

Paragraph (iv) of section one hundred and twenty-nine (which makes the reduction of the number of members of a company below the minimum a ground for the winding up of the company).

CHAPTER 26.

An Act to provide a Special Grant for the purpose of improving Medical Service in the Highlands and Islands of Scotland, and for other purposes connected therewith. [15th August 1913.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

1.—(1) In every financial year there shall be paid out of money to be provided by Parliament the sum of forty-two thousand pounds, which shall be called the Highlands and Islands (Medical Service) Grant, and shall be paid to a separate fund to be called the Highlands and Islands (Medical Service) Fund. Highlands and Islands (Medical Service) Grant.

(2) The Highlands and Islands (Medical Service) Fund shall, subject to such regulations as may be made by the Treasury with respect to accounts, audit, and accumulation of the fund, be administered and applied by the Highlands and Islands (Medical Service) Board (hereinafter called the Board) appointed under this Act, in accordance with a scheme or schemes to be prepared by them and approved by the Secretary for Scotland with the consent of the Treasury, for the purpose of improving medical service, including nursing, in the Highlands and Islands of Scotland, and otherwise providing and improving means for the prevention, treatment, and alleviation of illness and suffering therein.

2.—(1) For the purposes of this Act, it shall be lawful for His Majesty, by warrant under his sign manual, to appoint a board consisting of not less than five and not more than nine members, one of whom shall be a woman, to be called the Highlands and Islands (Medical Service) Board. One of the members of the Board shall be appointed by His Majesty to be chairman of the Board. Appointment of Board.

(2) The Board may act by any four, or, if the total number of the Board is six or less, by any three of their number, and notwithstanding any vacancy in their number.

(3) The Secretary for Scotland may appoint a secretary to the Board and the Board may, with the consent of the Treasury